

26STCV08102 26STCV08102

County: los-angeles

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Case Number: 26STCV08102 Hearing Date: September 24, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

FRANK DIAZ

vs.

AEROTEK, INC., et al.

Case

No.: 26STCV08102

Hearing Date: September 24, 2026

Defendant's

motion to compel arbitration is GRANTED. This action is stayed pending the

completion of arbitration.

On

3/13/2026, Plaintiff Frank Diaz (Plaintiff) filed suit against Aerotek, Inc.,

Duluth Services Inc. fka Duluth Environmental Services, Inc. and dba Vest Tube

LLC and Vest, and Stacie Miles, alleging: (1) disability discrimination; (2)

failure to reasonably accommodate; (3) failure to engage; (4) failure to

provide; (5) retaliation; (6) failure to prevent; (7) wrongful termination; (8)

retaliation; and (9) defamation.

On

7/2/2026, Defendants Aerotek, Inc. and Duluth Services, Inc. (collectively,

Defendants) moved to compel arbitration and stay this action.

Discussion

I.

Defendants' Burden

The party moving to compel arbitration "bears the burden

of proving [the] existence [of an arbitration agreement] by a preponderance of

the evidence." (Rosenthal v. Great

Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413.) The moving party

also bears the burden of demonstrating that the claims fall within the scope of

the arbitration agreement. (Omar v.

Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961.)

Defendants

submitted evidence that Plaintiff was assigned to work at Vest Tube, LLC (Vest)

as a General Production Worker from approximately 8/20/2024 to 3/5/2025, and

entered into 13 arbitration agreements throughout that time. (Collum Decl.

Exhs. 1-13)

Defendants

also submitted evidence that Plaintiff's claims fall within the scope of the

agreements. (Id.)

In

opposition, Plaintiff argues that the Federal Arbitration Act (FAA) expressly

exempts from its coverage all contracts of employment involving "any other

class of workers engaged in" foreign or interstate commerce. (9 U.S.C. § 1.)

Plaintiff contends that throughout his employment, he "performed work directly

and necessarily connected to the shipping, handling, movement, and delivery of

goods in interstate and international commerce. His assignments included

working as a lead shipping and receiving clerk for Bird Rides, Inc., a material

handler for BDP International, Inc., an international logistics company, and a

general production worker for Vest, where he manufactured, bundled,

transported, staged, and prepared steel products for shipment." (Opp., 1: 7-8.)

In reply,

Defendant refutes Plaintiff's characterization of his work:

As a

Materials Handler, Plaintiff assisted in the manufacture of carbon steel tubing

and performed maintenance work. Plaintiff himself did not transfer, ship,

distribute, or transport products himself. Instead, his job duties preceded the

actual transportation of those products. As such, Plaintiff was not a

"transportation worker" for the purposes of the FAA's limited "transportation

worker" exception to the FAA during his assignment at Vest.

(Reply,

2: 17-22.)

After review,

the Court finds that Plaintiff was not a transportation worker within the

meaning of the FAA's Section 1 exemption, as the evidence suggests he had

nothing to do with the transportation of Vest's products, but, instead,

performed work that preceded transportation. While the Court acknowledges that

an individual need not work in the transportation industry to fall within the

exemption from the FAA, Plaintiff's characterization would essentially deem

anyone involved in any way in interstate commerce a "transportation worker"

such that the exception to the FAA would effectively swallow the FAA whole.

Instead, "to

fall within the exemption, the workers must be connected not simply to the goods, but to the act of moving those goods across state or national borders.”

(Wallace v. Grubhub Holdings, Inc. (7th Cir. 2020) 970 F.3d 798, 802.)

Here, Plaintiff’s responsibilities included assisting in the manufacturing of carbon steel tubing by ensuring that they are placed in the proper areas for the next phase of production. Plaintiff also conducted basic maintenance tasks such as keeping the work area clean, disposing of scrap, and checking that equipment (such as forklifts) was working properly. (Ford Decl., ¶ 4.) This falls short of being connected to the act of moving those goods across state or national borders.

Given the

Court’s conclusion that Plaintiff does not fall within Section 1’s transportation-worker exemption, the FAA applies and the preponderance of evidence indicates that an enforceable arbitration exists and his claims are covered within the scope of the agreement.

Given that

Defendant has established by a preponderance of the evidence that an arbitration agreement exists, and that Plaintiff’s claims are covered by that agreement, the burden shifts to the Plaintiff to establish that the arbitration clause should not be enforced. (Pinnacle, 55 Cal.4th at p. 236.)

Plaintiff

did not raise any arguments as to unenforceability and thus has not met his burden to show that the arbitration agreement should not be enforced.

Based on the

foregoing, Defendant's motion to compel arbitration is granted. This action is order stayed upon the completion of arbitration.

It is so ordered.

Dated: September

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at smcdept17@lacourt.org

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)

633-0517.